

July 10, 2026
Dept. 9
Civil Tentative Rulings

13.	26CV0893	CASHFLOIT LLC, A FLORIDA LIMITED LIABILITY COMPANY VS. CALIBUNGA SAN JOSE, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY ET AL
PETITION TO COMPEL ARBITRATION AND STAY PROCEEDINGS IN LIEU OF ANSWER		

Defendant, Red Beard Holding, LLC, filed this motion to compel arbitration and stay proceedings on May 11, 2026. On June 1, 2026, Defendants, Calibunga San Jose, LLC, California Dreamin' Entertainment Holdings, LLC, and Red Beard Operation, LLC, filed a Notice of Joinder in Petition to Compel Arbitration and to Stay Action. Plaintiff filed their limited opposition on June 26, 2026 agreeing to participate in arbitration; however, Plaintiff objects to the stay of proceedings against defendants who will not be participating in arbitration and whose defaults have already been entered by the court. Plaintiff also requests that arbitration be stayed until the judgment is entered against defaulted defendants.

An Entry of Default was entered on June 12, 2026 on Steven Martin Dooner, an individual, California Dreamin' Entertainment Group, LLC, a California Limited Liability Company doing business as Calibunga San Jose Online Ticketing; California Dreamin' Entertainment, Inc., a Delaware Corporation.

On July 1, 2026, Defendants Calibunga San Jose, LLC, California Dreamin' Entertainment Holdings, LLC, Red Beard Holdings, LLC, and Red Beard Operation, LLC filed a reply wherein they do not oppose Plaintiff proceeding to enter default judgments against the three non-signatory, defaulted defendants (California Dreamin' Entertainment Group, LLC, California Dreamin' Entertainment, Inc., and Steven Dooner) (collectively the "Defaulted Defendants"). Defendants request the court confirm the following:

1. Neither res judicata (claim preclusion) nor collateral estoppel (issue preclusion) can give a default judgment against the Defaulted Defendants any binding, preclusive, or evidentiary weight against Petitioners in the arbitration; and
2. The one-satisfaction cap rule strictly caps Plaintiff's total recovery across both forums, requiring an immediate pro tanto credit against the arbitration for any amounts collected in court.

As there is no opposition to the motion to compel arbitration, Defendants' request is granted. California Code of Civil Procedure § 1281.4 mandates that the court in which the action is pending shall, upon motion of a party, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies. "The purpose of this statutory stay is to protect the jurisdiction of the arbitrator by preserving the status quo until arbitration is resolved." *Aronow v. Superior Court* (2022) 76 Cal.App.5th 865.

Plaintiff's request to delay arbitration until the default judgment is entered conflicts with the mandatory nature of § 1281.4.

Res judicata bars a subsequent claim when “(1) the decision in the prior proceeding is final and on the merits; (2) the present proceeding is on the same cause of action as the prior proceeding; and (3) the parties in the present proceeding or parties in privity with them were parties to the prior proceeding.” [Citation.] Upon satisfaction of these conditions, claim preclusion bars ‘not only ... issues that were actually litigated but also issues that could have been litigated.’” (*Ibid.*)

“The doctrine of collateral estoppel or issue preclusion is a secondary form of res judicata. [Citation.] It prevents a party who had a full and fair opportunity to litigate a particular issue in a prior proceeding from relitigating it in a subsequent proceeding. [Citation.] ‘A prior determination by a tribunal will be given collateral estoppel effect when (1) the issue is identical to that decided in a former proceeding; (2) the issue was actually litigated and (3) necessarily decided; (4) the doctrine is asserted against a party to the former action or one who was in privity with such a party; and (5) the former decision is final and was made on the merits.’ ” (*McCutchen v. City of Montclair* (1999) 73 Cal.App.4th 1138, 1144, 87 Cal.Rptr.2d 95.)

Colombo v. Kinkle, Rodiger & Spriggs, 35 Cal. App. 5th 407, 416 (2019).

Defendants are distinct legal entities not in privity with Defaulted Defendants. Additionally, a default judgment by its very nature is not actually litigated. As such, the Court finds res judicata and collateral estoppel inapplicable and shall not bind Defendants in arbitration. Upon the collection of actual full payment, the one satisfaction doctrine applies.

TENTATIVE RULING #13:

DEFENDANTS’ PETITION TO COMPEL ARBITRATION AND TO STAY PROCEEDINGS IS GRANTED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES

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ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.